

		Cal.App.4th at p. 188, quoting <i>Bos Material Handling, Inc. v. Crown Controls Corp.</i> (1982) 137 Cal.App.3d 99, 105.) Here, Matosic declares that the Lease is the reason Plaintiff resided on the relevant premises where the accident occurred. (See Matosic Decl., ¶¶ 2-3; see also Compl., Second Cause of Action, ¶ GN-1.) Defendants contend that, therefore, Plaintiff's claims arise out of or relate to the Lease. Consequently, the Lease Agreement is the root of Plaintiff's relationship with Defendant and the claims asserted herein arise therefrom. Again, Plaintiff has not objected to Matosic's declaration or otherwise opposed or responded to Defendants' argument, and thus, have waived any such objections or arguments. Accordingly, Defendants have established that Plaintiff's claims fall within the scope of the Arbitration Agreement. The court is required to grant the motion to compel arbitration. Defendants shall give notice of this ruling.
4	Siddall vs. General Motors LLC 30-2025-01465254	<u>Motion to Strike and/or Tax Costs</u> Defendant General Motors LLC's Motion to Tax Counsel's Memorandum of Costs is GRANTED in part and DENIED in part. Defendant General Motors LLC is ORDERED to pay Plaintiff Marisol Siddal \$2,529.39 in costs within 30 days of receiving notice of this ruling. <u>Pending Motion</u> Defendant General Motors moves to tax costs from the Memorandum of Costs filed by Plaintiff Marisol Siddal. <u>Standard to Seek Costs – Prevailing Party</u> Generally, the "prevailing party" is entitled as a matter of right to recover costs of suit in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 606.) The "prevailing party" includes "the party with a net monetary recovery, a defendant in whose favor a dismissal is

		entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (Code Civ. Proc., § 1032, subd. (a)(4).) In addition, the Song-Beverly Act specifically states that “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d.)) Here, the evidence shows that the parties agreed to settle this matter and that in the settlement agreement, the parties agreed that Plaintiff was the prevailing party and entitled to costs. (See ROA #39, Exh. A, ¶¶ 5-6.) <u>Standard to Seek Costs – Recoverable Costs</u> Civil Procedure Code section 1033.5 enumerates the specific costs that are recoverable by the prevailing party in a civil action. (See Code Civ. Proc, § 1033.5.) Section 1033.5 also provides that the court may award costs not expressly described in the statute for expenses that are “reasonably necessary to the conduct of the litigation” and are “reasonable in amount.” (Code Civ. Proc, § 1033.5, subd. (c)(2)-(4).) While the trial court has discretion to decide whether a cost item was reasonably necessary, the trial court does not have discretion to award a cost item that is not statutorily authorized. (<i>Ladas v. California State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774.) To recover costs, the prevailing party must file and serve a memorandum of costs “within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” (Cal. Rules of Court, rule 3.1700(a).) <u>Standard to Strike or Tax Costs</u> After the prevailing party files and serves the memorandum of costs, the nonprevailing party has 15 days after service of the memorandum of costs to file a motion to strike a cost altogether, or to tax the cost and reduce it. (Cal. Rules of Court, rule 3.1700, subd. (b).)
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		Civ. Proc., § 631, subd. (b) ["At least one party demanding a jury on each side of a civil case shall pay a <i>nonrefundable fee</i> of one hundred fifty dollars (\$150)"], italics added; <i>id.</i>, subd. (f)(5) [failure to pay jury fees pursuant to Section 631(b) may result in waiver of trial by jury].) Here, payment of the jury fees were reasonable and necessary to preserve Plaintiff's right to a jury trial, and shall be recovered by Plaintiff. <u>Court Reporter Fees</u> Defendant challenges \$1,300.00 in "anticipated" court reporter fees, requested in connection with this motion and the motion for attorney's fees. Defendant argues that these fees have not yet been incurred and are unreasonable. Civil Procedure Code section 1033.5 specifically includes "Court reporter fees as established by statute" as a recoverable cost. (Code Civ. Proc., § 1033.5, subd. (a)(11).) In addition, the Government Code section 68086 states that "costs for the services of the official court reporter shall be recoverable as taxable cost by the prevailing party as otherwise provided by law," (Gov't Code, § 68086, subd. (c)), and "[t]he fees and charges of the certified shorthand reporter shall be recoverable as taxable costs by the prevailing party as otherwise provided by law," (Gov't Code, § 68086, subd. (d)(2)). Thus, it appears that these costs are reasonable. However, Civil Procedure Code section 1033.5 states that an award of costs is allowed only if "incurred". (Code Civ. Proc., § 1033.5, subd. (c)(1).) Civil Code section 1794, which controls Song-Beverly Act actions such as this one, also limits recoverable costs to those that are "determined by the court to have been reasonably <i>incurred</i> by the buyer in connection with the commencement and prosecution of such action." (Civil Code, § 1794, subd. (d), italics added.) Finally, the California Rules of Court require that a "memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily <i>incurred</i> in the case." (Cal. Rules of Court, rule 3.1700(a)(1), italics added.)
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		While Plaintiff contends that these court reporter fees will be incurred, Plaintiff does not show that these costs have been incurred. (See Goethals Decl., ¶ 9.) Therefore, the court will grant the motion to tax \$1,300 in court reporter fees. However, if these costs are actually incurred at a later date, Plaintiff may file an amended memorandum of costs that includes these court reporter fees and also include the anticipated attorney's time spent preparing and filing the amended memorandum of costs in its motion for attorney's fees. <u>Electronic Filing Fees</u> Defendant challenges \$185.50 in "electronic filing fees," arguing that Plaintiff did not attach a worksheet or any verification of the alleged costs. However, Civil Procedure Code section 1033.5 states that recoverable costs include "[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents." (Code Civ. Proc., § 1033.5, subd. (a)(14).) Defendant concedes that such fees "are generally recoverable under Code of Civil Procedure section 1033.5(a)(15) [sic]." (Def.'s Reply Supporting Its Mot. to Strike or Tax Counsel's Mem. of Costs (Reply) at p. 4:18-19.) Further, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (See <i>Ladas v. California State Auto. Ass'n</i>, <i>supra</i>, 19 Cal.App.4th at p. 774.) In any case, Plaintiff did provide invoices to support these fees. (Goethals Decl., p 10, Exh. 6.) Defendant claims that the invoices "indicate that many of these costs relate to administrative filings, including notice of ruling, notice of posting jury fees, notice of continuance and notice of reassignment," and argues that "[r]outine administrative filings" should not be recoverable. (Reply at p. 4:19-21.) Defendant, however, provides no authority for the contention that costs related to administrative filings are not recoverable, even where they are reasonable and necessary for the conduct of the litigation.
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		Thus, the court will deny the motion to tax these electronic filing fees. <u>Other (Mediation)</u> Defendant initially challenged a \$600.00 mediation fee, asserting that Plaintiff had not attached any verification that the alleged costs were actually incurred in this case. As noted above, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (See <i>Ladas v. California State Auto. Ass’n, supra</i>, 19 Cal.App.4th at p. 774.) In any case, in its reply, Defendant acknowledges that “Counsel has provided adequate documentation in support of the \$600.00 in claimed mediation costs and therefore [Defendant] withdraws its challenge to those costs.” (Reply at pp. 2:23-25, 4:23.) Accordingly, the court will deny the motion to tax the mediation fee. <u>Other (Research and Anticipatory Fees)</u> Lastly, Defendant challenges \$129.94 in “Research” fees, asserting the same constitutes overhead costs that are not passed on to the client and therefore are not recoverable. The Court of Appeal has held that “[f]ees for legal research, computer or otherwise, may not be recovered under section 1033.5.” (<i>Ladas v. California State Auto. Ass’n, supra</i>, 19 Cal.App.4th at p. 776.) However, Civil Code section 1794 (as opposed to Civil Procedure Code section 1033.5) permits recovery of “costs and expenses” which are “determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such actions.” (Civ. Code, § 1794, subd. (d).) The Court of Appeal has stated that “it is clear the Legislature intended the word ‘expenses’ to cover items not included in the detailed statutory definition of ‘costs.’” (<i>Jensen v. BMW of North America, Inc.</i> (1995) 35 Cal.App.4th 112, 137, disapproved on other grounds, <i>Rodriguez v. FCA US LLC</i> (2024) 17 Cal.5th 189.) Here, Plaintiff presents evidence that Plaintiff’s Counsel incurred this electronic research cost in connection with this action, (see Goethals Decl., ¶12, Exh. 8), and Defendant presents no evidence to the contrary.
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		Defendant also challenges \$300.00 in “anticipated” costs that Plaintiff claimed in connection with the motion to tax and the motion for attorney’s fees, arguing again that such costs have not been incurred as of yet. Plaintiff presents evidence that \$43.40 in electronic filing fees and \$90.00 in delivery fees have been incurred. (See Goethals Decl., ¶ 13, Exh. 9.) There is no evidence that the remaining \$166.60 in costs have been incurred. Therefore, for the reasons stated above, the court will grant the motion to tax \$166.60 in other costs. However, if these costs are actually incurred at a later date, Plaintiff may file an amended memorandum of costs that includes these other fees and also include the anticipated attorney’s time spent preparing and filing the amended memorandum of costs in its motion for attorney’s fees. Plaintiff shall give notice of this ruling.
5	Engineering Innovations, Inc. vs. Machining Time Savers, Inc. 30-2025-01520244	<u>Motion to Compel Arbitration and Joinder</u> The court has no written tentative ruling at this time. The court may provide a summary tentative ruling prior to the hearing and will hear from the parties or their counsel at oral argument.
6	Rayhan vs. Memorial Health Services 30-2024-01383926	<u>Motion for Sanctions</u> Defendants Memorial Health Services’ and Orange Coast Memorial Medical Center’s Motion for Terminating Sanctions, or, in the Alternative for Evidentiary Sanctions to Strike/Exclude Plaintiffs’ Expert Testimony is DENIED. <u>Pending Motion</u> Defendants Memorial Health Services and Orange Coast Memorial Medical Center move for terminating sanctions with respect to the Second Amended Complaint for Damages (SAC) filed by Plaintiffs David Rayhan, M.D. and Syrus Rayhan, M.D.